

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO H.B. 2446
(Reference to House engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 28, chapter 14, article 2, Arizona Revised
3 Statutes, is amended by adding section 28-5233, to read:

4 28-5233. Commercial motor vehicle drivers; English language
5 proficiency; enforcement

6 A. THE DEPARTMENT OF PUBLIC SAFETY SHALL ENFORCE THE ENGLISH
7 LANGUAGE PROFICIENCY REQUIREMENTS FOR COMMERCIAL MOTOR VEHICLE DRIVERS
8 PRESCRIBED IN 49 CODE OF FEDERAL REGULATIONS SECTION 391.11 IN A MANNER
9 CONSISTENT WITH:

10 1. REGULATIONS ADOPTED BY THE FEDERAL MOTOR CARRIER SAFETY
11 ADMINISTRATION.

12 2. APPLICABLE FEDERAL ENFORCEMENT GUIDANCE.

13 3. THE COMMERCIAL VEHICLE SAFETY ALLIANCE NORTH AMERICAN STANDARD
14 INSPECTION PROCEDURES AND OUT-OF-SERVICE CRITERIA.

15 B. A COMMERCIAL MOTOR VEHICLE DRIVER WHO DOES NOT MEET THE ENGLISH
16 LANGUAGE PROFICIENCY REQUIREMENTS PRESCRIBED IN 49 CODE OF FEDERAL
17 REGULATIONS SECTION 391.11 IS SUBJECT TO ENFORCEMENT ACTION CONSISTENT
18 WITH FEDERAL LAW.

19 Sec. 2. Appropriation; department of public safety;
20 commercial motor vehicle inspector training;
21 exemption

22 A. The sum of \$400,000 is appropriated from the Arizona highway
23 patrol fund established by section 41-1752, Arizona Revised Statutes, in
24 fiscal year 2026-2027 to the department of public safety for commercial
25 motor vehicle inspector training to be provided by a national nonprofit
26 organization. A nonprofit that provides inspector training that uses
27 monies appropriated by this subsection must include North American
28 standard level 1 inspection procedures and out-of-service criteria that
29 are applicable to commercial motor vehicle driver requirements.

30 B. The appropriation made in subsection A of this section is exempt
31 from the provisions of section 35-190, Arizona Revised Statutes, relating
32 to lapsing of appropriations."

33 Amend title to conform